Mr. Vijay Bahadur Tiwari vs State Of Nct Of Delhi on 13 December, 2022

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* IN THE HIGH COURT OF DELHI AT NEW DELHI

\+ BAIL APPLN. 2926/2022

MR. VIJAY BAHADUR TIWARI

Through: Mr. Parmod Kr. Sah & Mr
Tripathih, Advs.

versus

STATE OF NCT OF DELHI .

Through: Mr. Narinderjit Singh B
State with Mr. Shivesh
Advocate Insp. Vijay Ku
PS Seema Puri, Delhi.

CORAM:
HON'BLE MR. JUSTICE ANISH DAYAL
ORDER

% 13.12.2022

1. This bail application has been moved seeking anticipatory bail in FIR No. 456/2020 under sections 456/420 IPC dated 07th October, 2020 registered at PS Seemapuri on the ground that the petitioner was also a victim of fraud of the bogus Insurance Companies which had used him as an intermediary to attract the investors including the complainant and that he had no role in luring the victims for these investments.

2. As per the status report which has been filed on record, the documents relating to so-called investments allegedly made at the behest of the accused were all found to be fabricated and in some cases, companies also did not exist. Further, two notices under Section 41A Cr.P.C. were issued at the address of the petitioner but he did not join the investigation.

3. Ld counsel for the petitioner states that they will join and fully cooperate in the investigation as and when summoned by the Investigating Officer. Further, ld. counsel for the petitioner states that they will deposit a sum of Rs.1 lakh to demonstrate their bona fide in the matter.

4. It is accordingly directed that this amount of Rs.1 lakh be deposited by the petitioner on or before 22nd December, 2022 in the name of Registrar General of this Court which shall be kept in form of an interest bearing FDR. It is made clear that this will be subject to rights and contentions of the parties upon final adjudication.

5. It is further directed that in the event the petitioner is required for the purpose of any investigation, notice be served upon him at the addresses furnished by him in the Court today which are as follows:

> Mr. Vijay Bahadur Tiwari, R/o Village Padari Tiwari, Post Dumwalia, District: Deoria, UP Also at C-303, New Seemapuri, Shahadra, Delhi - 110095.

6. In the event the petitioner fails to respond to notice within a period of 7 days, the State shall be at liberty to move this Court for appropriate remedy, if need be.

7. Ld counsel for the petitioner also seeks slight correction in para no.4 of the order dated 28th September, 2022 passed by this Court wherein it is recorded that petitioner was merely an agent and through him certain investments were made and for which the applicant issued receipts against those payments. Ld. Counsel states that in fact the applicant never issued any receipts in relation to the alleged investments.

8. The application is disposed of with the above directions.

9. Order be uploaded on the website of this Court.

ANISH DAYAL, J DECEMBER 13, 2022/sm